

The Claremont City Council held a meeting on Wednesday, July 12, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Victor Bergeron
Mayor Charlene Lovett
At-Large Councilor Allen Damren
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Absent:

Ward I Councilor Carolyn Towle

Also present were:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett suggested flipping New Business A. Motion to Re-Approve Identity Theft Prevention Policy with B. Motion to apply for CDFA Clean Energy Fund Loan. Council concurred.

REPORT OF THE SECRETARY

Mayor Lovett suggested waiting to vote to approve the June 22, 2017, Joint Council/School Board minutes until the next joint meeting. Council concurred.

A motion was made by Mr. Damren and seconded by Mr. Raymond to accept the minutes of the June 14, 2017, City Council meeting.

Voice vote: motion carried 8-0.

A motion was made by Mr. Bergeron and seconded by Mr. Simonds to accept the minutes of the June 28, 2017, City Council meeting.

Mayor Lovett asked Mr. Pope to forward the adjournment time to Ms. Russell.

Voice vote: motion carried 8-0.

MAYOR'S NOTES

Mayor Lovett's notes:

- July 19 CSB Community Center, 5:30 p.m. – 8 p.m., Childhood Lead Poisoning, led by Gail Gettens, DHHS. Food will be served.
- The Fire Department and LaValley's built a swing set for a little girl whose swing set was damaged.
- Congratulated Fire Chief Rick Bergeron on his 40th anniversary with the Fire Department.
- On behalf of Ms. Towle, she thanked the City Manager for attending last night's ZBA (Zoning Board of Adjustment) meeting. Ms. Towle said that was the first time in 10 years that the City Manager had attended the meeting.

CITY MANAGER'S REPORT

Fire Department:

Happy 40th anniversary to Chief Richard Bergeron. He has been a Firefighter with the Claremont Fire Department since Jul 11, 1977.

Additionally, I want to thank CFD Lieutenant Scott Messer and the entire Department for stepping up to help replace the swing set that was vandalized on Maple Ave. Home Depot and Lavalley Building Supply here in Claremont also supported the replacement with donations.

Ashley's Landing Boat Launch

NH Fish & Game is to clean out the Ashley's Ferry boat landing each year around April or May, but due to weather and backlog at the other (143) locations it is taking more time to get to it this year. Right now, they are working on an issue at the Pine River ramp project and that should wrap up in 2-3 weeks.

Each year Tim Hernon from Parks & Rec assists NH Fish & Game with trash pickup and this year graffiti removal. Tim also assists Fish & Game with removal of the silt that is dredged from the river.

We are working with NH Fish & Game to find other ways we can assist their efforts. The DPW is looking into providing the estimated \$1,500 worth of gravel and equipment it will take to regrade the road accessing the boat ramp.

New Hampshire Fish and Game manages 143 free public boat access sites on NH's 930 lakes and Great Ponds, 12,000 miles of rivers.

Rail Trail Use:

A letter drafted by City Solicitor Jane Taylor, Town Manager of Haverhill, NH, and myself and was mailed to our Federal Delegation June 1st, 2017. We have not yet received a response, but there will be a follow up meeting on August 23rd at DRED HQ.

Claremont Airport

At the airport, the construction of the new hangar is progressing nicely. The entire framework is up and the exterior sheathing is now being applied. Work on the slope projects that were started last fall has resumed and this year we have been working with the Public Works Department to help them access some of the sand at the airport, that will be available for their use in the winter.

Welfare Department

30 families assisted \$14,420.71

Rent \$ 13,411.07
Utilities \$ 212.18
Prescriptions \$ 375.65
Groceries \$ 421.81

2016	
30 families assisted	\$14,160.26
Rent	\$ 13,305.00
Utilities	\$ 855.26

Personnel Matters

We are in the process of setting up interviews for the Business Development Coordinator/Grant Writer position.

We have hired a new full-time Assessing Clerk to fill the position vacated by Tiffany Favreau. Kimberlee Burkhamer will start in the position on July 31st.

Reminder that our super awesome Executive Assistant Doree Russell will be out of the office from July 13th to mid-August. Her position will be temporarily filled by Emily Stiffler. Emily is a wonderful lady with lots of administrative experience, but not in government so please treat her gently as she does her best to keep the office administered.

Parks & Recreation

Saturday, July 22, 9 AM Claremont's Go For Food Color Run/Walk Moody Park

The July 4th Celebration took place at Monadnock Park on July 4th. This event was well attended and offered entertainment for the entire family, including music by Rusted Chrome and a variety of food vendors. The evening concluded with an amazing

fireworks display. \$2,091 was raised at Monadnock Park through donations and a 50/50 raffle. That money will be used to help fund next year's Fireworks display.

Hutter Construction will be repairing tile in the pool area around July 10th. Portions of the pool may be closed during this time.

The resurfacing of the Track at Monadnock Park will be starting on Thursday, July, 6th and will go through Thursday, July 27th for repairs and resurfacing (weather permitting).

Mayor Lovett asked why Council had not received department reports. She asked to have them in the packet. She asked Mr. McNutt to forward a copy of his report to the Council.

APPOINTMENT TO BOARDS AND COMMITTEES

None

CITIZEN'S FORUM

George Caccavaro, Ward 2 resident and Fiske Free Library Board of Trustees, said the Trustees asked him to read a statement showing complete and unconditional support of the Fiske Free Library staff.

Jim Feleen, Ward 2, talked about the MacGlaflin land swap. He said there is a right-of-way out Spofford Street to this City-owned land. He said the lease ran out in 2001. He gave a brief history of the land swap agreement. He talked about a walking trail along the river and that the City owns a parcel of land on Water Street that would provide an entry back to the downtown. He said Mr. MacGlaflin is using the land without paying rent.

Mr. Damren said this is the second time Mr. Feleen has brought this information to the Council. Mr. Feleen said he's been working on this since 2001. Mr. Feleen said he showed the information to Interim City Manager Pat MacQueen.

Mr. McNutt said former City Attorney Jane Taylor and Mr. MacQueen left him notes and files. It is being worked on. There are challenges.

Mr. Temple asked if anything is being paid on the seven-acre field. Mr. McNutt said he would have to check. Mr. Feleen said the current owner has never paid anything.

Bernie Folta, Ward 3, said regarding the Library that other communities use a method of leveraging library resources that is not used here. They use volunteers and interns. He doesn't know if this Library uses them, but his impression is no. He thinks there are quite a few development opportunities here. He hopes the City Manager will bring fresh thinking to the Library. Mr. Caccavaro said the Library does have a modern microfiche. Bernie Folta suggested the Trustees go on field trips to see what other libraries are doing.

OLD BUSINESS

Harm Reduction Program Update

Louisa Chen and Nasim Azizgolshani, 2nd year medical students, Dartmouth Geisel School of Medicine, said their main goal is to get needles off the street, not transmit blood-borne disease, distribute Narcan and to educate how to identify overdose.

Dr. Azizgolshani said there are five medical students involved.

Dr. Chen said they work out of the Claremont Soup Kitchen.

Dr. Azaizgolshani said in order for the group to receive the free Narcan, the law requires data collection to determine its effectiveness.

There was a discussion about using the Fire Station as a safe place for people with opioid addictions to go. The doctors would be willing to discuss that.

Dr. Azaizgolshani said Senate Bill 234 covers syringe exchange. They give Narcan to anyone who asks. Dr. Chen said the cost for the Narcan is \$75, but it is provided to them for free, so they need to know what county it will be used and generally who it is for.

Dr. Azaizgolshani said this is being funded by one-time grants. Dr. Chen said this is not a one-year program, it's intended for long term. They are looking for other funding. They are working with Valley Regional Hospital to dispose of the needles for free.

Mr. Koloski asked if this service would draw intravenous users to the community. Dr. Chen said that is not something they see. People come from other counties to exchange needles and get Narcan, but not to stay.

NEW BUSINESS

Motion to Apply for CDFA Clean Energy Fund Loan

Tim Herson, Supervisor Facilities & Maintenance, Parks and Recreation Department said this is to retrofit some of the lighting at the Claremont Savings Bank Community Center (CSBCC) to LED. The gross project cost is \$64,000; they expect \$18,000 in rebates; there will be a three-year pay back.

A motion was made by Mr. Koloski and seconded by Mr. Raymond to authorize the City Manager, or his designees, to apply to the Community Development Finance Authority (CDFA) Clean Energy Fund's Municipal Energy Reduction Fund for a revolving loan in an amount not to exceed \$70,000 for the installation of LED lights in the Claremont Savings Bank Community Center.

Voice vote: motion carried 8-0.

Ashley Ferry Boat Ramp Maintenance

Mr. Hernon said in the past, the City would do maintenance on the ramp. The ramp is not in an ideal location. In 2006/7 the NH Fish & Game determined it would be best for them to take the responsibility for clearing the silt and to keep invasive species from spreading. The ideal time to clean the ramp is when the river recedes. Fish & Game have over 100 areas to take care of. Claremont's ramp is on a dirt road and if the road is posted, Fish & Game is not able to bring in big machinery until later.

Mr. Raymond said he is a boat owner. He asked about possibly moving the ramp. Mr. Hernon suggested talking with Fish & Game to change the angle; that might help.

There was a discussion about who owns the area.

Mr. Koloski would like clarification of who owns it. He asked about trash. Mr. Hernon said it is a carry-in/carry-out facility. The person who does the weed whacking and mowing also removes trash. The Parks and Recreation Department does too.

Mayor Lovett asked for a follow-up on who owns this. She said the ultimate goal is to be able to use this in May.

Motion to Re-Approve Identity Theft Prevention Policy

Mary Walter, Finance Director, said this is an annual item. The City is at low risk for identity theft. Water and Sewer are the main focus of this. Since she's been here, she had not heard of any identity theft problems in the City. She said there are no changes from last year.

A motion was made by Mr. Damren and seconded by Mr. Pope that the Claremont City Council, pursuant to the "Fair and Accurate Credit Transactions Act of 2003," the "Red Flag Clarification Act of 2010" and Federal Regulation Title 16 Part 681, hereby approves the City of Claremont Identity Theft Prevention Program and authorizes the City Manager or his designees to take such actions as may be necessary to implement said Identity Theft Prevention Program in accordance with applicable federal and state law and regulation.

Voice vote: motion carried 8-0.

Motion to Transfer Funds for Bus Service

Ms. Walter said during the budget discussions, Mr. McNutt had said he would find the \$25,000 to help fund the bus service. It is being taken from Property Maintenance.

Mr. McNutt said this is encumbered money from FY17.

A motion was made by Mr. Pope and seconded by Mr. Damren that the Claremont City Council, pursuant to Article III, Section 45 of the Claremont City Charter, hereby authorizes the City Manager or his designees to transfer the following sums of money between departments, such funds having been raised and appropriated in the 2018 City budget.

Transfer from: 01-411-980-0000 Property Maintenance \$25,000

Transfer to: 01-485-290-0160 SWCS – Bus Transportation Svc \$25,000

Mr. Temple said social services funding has been eliminated from the City's budget for a few years. He wants to be cautious that the bus people don't think this will be done every year. The money was encumbered from last year. He wants everyone to understand this is one time.

Mr. Damren agreed. He said when Southwestern Community Services was here, all Councilors were in favor of resurrecting the bus service, but they also wanted it known that City funding would not be available every year.

Mr. McNutt agreed with Mr. Temple. He doesn't want anyone to think we have unrestricted monies for anything. Initially he was reluctant, but wanted to continue to work with them and for them to know this isn't a handout. The City is working toward revitalizing of downtown. We will add housing to downtown. Parking is limited. This bus service could provide additional transportation services so we may not need as many vehicles.

Mr. Temple said that if the Soup Kitchen showed a need, it would be valid for them to ask for money as well as other social services organizations.

Mr. Bergeron said the City did a lot of cutting in this year's budget. He said he's not in favor of giving the money to the bus service. He said he is not against the bus service. He said if you give it to the bus, others will come asking for money.

Mr. Koloski said the only reason he is in favor of this is because he views it as a startup. He would be hard-pressed to do it again. His goal is for the bus service to become self sufficient.

Voice vote: motion carried 6-2, with Messrs. Bergeron and Temple voting no.

Presentation of Amended Council Rules

Mayor Lovett said there is an inconsistency with Council Rule 2. She said according to Council Rule 2 there has to be a 48-hour notice to call a meeting and state law only requires 24 hours. She wants to bring Council Rule 2 in line with the state. She said she consulted with NHMA (NH Municipal Association) on this. She acknowledged that she had not had this information placed in the packet, so if Councilors wished, they could vote on it at a later meeting.

After discussion, Councilors agreed they wanted to add language about emergency meetings and to clarify the language regarding Rule 11, City Solicitor, since the City currently does not have a Solicitor. Councilors agreed to bring this item back in August.

Legislative Wrap-up

Mayor Lovett talked about the six pieces of legislation she has testified on (SB247, SB191, SB57, SB193, HB413 and HB525).

- SB247 preventing childhood lead poisoning from paint and water and making an appropriation to a special fund. Retained in House Finance Committee. Need to continue stating support.
- SB191 (Second New Title) establishing keno and relative to funding for kindergarten. Going to get funding for 80% for kindergarten. Mr. Bergeron said some communities are already saying that is not enough.
 - Mayor Lovett said Council needs to decide if it wants this to be placed on the ballot in November. She wants this on the August agenda.
 - Mr. Koloski said he will recuse himself at that meeting. His establishment is one that could have Keno.
 - Mr. McNutt said he will invite the Police Chief to that meeting to give his input.
- SB57 (New Title) making appropriations to the Department of Environmental Services for the purposes of funding eligible drinking water and wastewater projects under the state aid grant program and relative to making an appropriation from the drinking water and groundwater trust fund to the department of environmental services to address drinking water contamination in Amherst (reimburse Claremont for the Maple Avenue project \$265,038 over 10 years; \$53,985 paid in this biennium).
- SB193 establishing education freedom savings accounts for students. Mayor Lovett testified in opposition. Retained in House Education Committee.
- HB413 relative to payment by the state of a portion of retirement system contributions of political subdivision employers. Retained in House Finance Committee.
- Hb525 relative to stabilization grants for education. Retained in House Education Committee.

There was a discussion about lobbyists. Mayor Lovett said the Council is the connection between state government and the municipality.

Mr. Damren asked about SB38 (Second New Title) making an appropriation to the department of transportation for local highway aid and aid for municipal bridges, relative to distribution of highway aid, and relative to red list bridges and asked if there is anything coming to Claremont.

Mr. McNutt said he and Public Works Director Scott Sweet are putting in for two red listed bridges. Mr. Damren asked about roads also. Mayor Lovett asked Mr. McNutt to put the information in his August City Manager's Report.

Bernie Folta, Ward 3, said information about how Claremont's legislators vote on bills of importance would be available on the legislative website.

COMMITTEE REPORTS

Mr. Bergeron said the Policy Committee hopes to have a draft ready for naming City-owned properties at the August meeting.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope talked about Lancaster and Whitefield sharing roads with ATV users. He will ask them some questions.

Mr. Pope would like to discuss, and have a plan for, warming shelters before the weather turns cold.

Mr. Pope would like to invite Governor Sununu to visit Claremont to discuss where Claremont needs help. Mayor Lovett said the invitation has been extended and after the budget cycle, Claremont will be on his schedule.

Mr. Raymond talked about two loan title companies on Washington Street and the one next to the pet store has cars in disrepair, no wheels, windshield smashed in, etc. on its lot. Mr. McNutt said it sounds like a code enforcement issue.

Mr. Simonds asked for a clarification of Ordinance 555 Merit Language, regarding Merit employees not having insurance comparable to union employees.

Mr. Koloski said he received a phone call from a resident on Centennial Street saying that in 30 years, that road has never received any treatment. He said he was asked to bring this forward. Mr. Koloski talked about discussions from the Master Plan Committee regarding a paving grade (index), to be done by an outside agency, to grade the City's roads. Mr. McNutt said that was discussed at the budget hearing. He and Public Works Director Scott Sweet want to move forward with that.

Mr. Koloski said that new regulations have been passed for net metering solar projects. He said there is a stigma that Claremont doesn't accept solar projects.

Mr. McNutt said solar is being explored for the wastewater treatment plant. Solar was looked at for the capped landfill, but there was a problem with lack of three-phase power.

Mr. Koloski asked that when a new business moves into the community, a welcome card, signed by all Councilors, should be given to them. Mayor Lovett said she would draft something up and present it at the next Council meeting.

Mr. Koloski said there are leftover Claremont 250th anniversary license plates that could be given out with the welcome letters.

Mayor Lovett said moving forward she wants department reports to be placed in the packets and to have background information on action items.

CONSULTATION WITH LEGAL COUNSEL

Council agreed to leave this item on the agendas.

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

At 8:57 p.m. a motion was made by Mr. Pope and seconded by Mr. Bergeron to enter non-public session pursuant to RSA 91-A:3,II(a) – Personnel, and to invite Mr. McNutt into the session.

Roll call vote: motion carried 8-0.

PUBLIC MINUTES

Members Present- Mayor Charlene Lovett, Asst. Mayor Vic Bergeron, Councilors Carolyn Towle, Scott Pope, Keith Raymond, Allen Damren, Bruce Temple, Nick Koloski, and John Simonds.

The council re-entered public session at 9:45 PM.

A motion was made by Councilor Pope, seconded by Councilor Temple to seal the non-public minutes of July 12, 2017 because it is determined that this information regards a confidential personnel matter and that such minutes are to remain sealed unless or until the purpose for which the information discussed has been requested to be sealed no longer applies. A roll call vote was taken- Towle yes, Pope yes, Raymond yes, Bergeron yes, Damren yes, Temple yes, Koloski yes, Simonds yes, Lovett yes. Motion passed.

A motion was then made by Councilor Simonds, second by Councilor Towle to adjourn. The motion passed and the meeting was adjourned at 9:50 PM.

Minutes Recorded By Allen Damren

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council